

with the Summons and Complaint.

The parties entered into a CCP 664.6 agreement, filed on 8/29/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,730, plus costs, less any credits for payments received.

The Defendant made payments of \$1,886.33.

Costs are \$583.61. A memo on costs was filed with the court.

A dismissal was entered on 10/10/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,189.61.

Plaintiff to file order on Motion, as well as submit Judgment.

10. 9:00 AM CASE NUMBER: L25-07038

CASE NAME: BANK OF AMERICA N.A. VS. RAFAEL ROMERO-ROMERO

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED ON 12/22/25**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where the Defendant was personally served with the Summons and Complaint.

The parties entered into a CCP 664.6 agreement, filed on 9/8/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,389.61, plus costs, less any credits for payments received.

The Defendant made payments of \$3,153.

Costs are \$583.61. A memo on costs was filed with the court.

A dismissal was entered on 10/23/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,150.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: N25-2474

CASE NAME: BETTY VETRO VS. TAMPICO HEALTHCARE CENTER, LLC

***HEARING ON MOTION IN RE: PETITIONERS' OSC FR TAMPICO HEALTHCARECENTER, LLC'S FAILURE TO MAKE MED RECS AVAIL & REQ FOR MONETARY SANCT IN AMT OF \$4,550.00 AGAINST TAMPICO HEALTHCARE, LLC**

FILED BY:

TENTATIVE RULING:

Background

Petitioner filed an Order to Show Cause ("OSC") on 12/3/25 for Respondent's alleged failure to produce medical records, under Section 1158(b) of the Evidence Code.

Petitioner also requested sanctions in the amount of \$4,550, under Section 1158(d).

In the instant matter, it is undisputed that Petitioner provided proper written authorization for records, and that Respondent failed to provide them within the statutory time frame of five days. Thus, the only issue remaining is that of sanctions.

Analysis

Section 1158(b) of the Evidence Code mandates that a medical provider "shall promptly make of all of the patient's records" available for inspection.

Section 1158(d) of the Evidence Code provides that the failure to provide these records within five days may render the provider liable for reasonable expenses, such as attorney fees. Section 1985.7 of the Code of Civil Procedure adds to this, compelling sanctions in the event of such a failure unless the court finds that the provider acted with substantial justification "[O]r that other circumstances make the imposition of the sanction unjust." *Id.*

The Petitioner and Respondent concede that Petitioner made initial requests for records via fax, but that these faxes – for whatever reason – did not transmit properly. Petitioner